THE NATIONAL COMPANY LAW TRIBUNAL

PRINCIPAL BENCH, NEW DELHI

IA (Companies Act)/218(PB)/2022

CA (CAA)-124(PB)/2021

Under Sections 230(1) and 232 of the Companies Act, 2013

IN THE MATTER OF:

SCHEME OF AMALGAMATION

OF

Skylark Industries Private Limited

...(Transferor Company / Applicant No 1)

WITH

D Pal Buildcon Private Limited

...(Transferee Company / Applicant No 2)

Order pronounced on: 02.01.2023

CORAM:

SH. RAMALINGAM SUDHAKAR, HON'BLE PRESIDENT

SH. AVINASH K. SRIVASTAVA, HON'BLE MEMBER (T)

PRESENT

For the Applicant : Mr. Ashish Middha, Advocate

AKS

MEMO of PARTIES

In the Matter of Companies Act, 2013

Section 230 (1) and 232

Skylark Industries Private Limited

Company incorporated under the Companies

Act, 1956

Having Registered Office at 12/5, Pal Mohan Apartments,

Punjabi Bagh West, New Delhi-110041

CIN: U17223DL2011PTC213441

Email: jain_subidhkumar@yahoo.co.in

(Transferor Company/ Applicant No 1)

WITH

D Pal Buildcon Private Limited

Company incorporated under the Companies

Act, 1956

Having Registered Office at 12/5, Pal Mohan Apartments,

Punjabi Bagh West, New Delhi-110041

CIN: U45400DL2007PTC168493

Email: jain_subidhkumar@yahoo.co.in

(Transferee Company / Applicant No 2)

ORDER

PER SH. AVINASH K. SRIVASTAVA, MEMBER (TECHNICAL)

1. This Company Application **CAA/124(PB)/2021** is jointly filed by the Applicant Companies with the following prayers:

   a) Pass an order that the Scheme of Amalgamation mentioned in this petition being (Annexure-5) hereto be sanctioned by this Hon'ble Tribunal to be binding with effect from the commencement of business on the 1st day of April 2021 on the Amalgamation of petitioner Companies, their shareholders, Secured/Unsecured Creditors and all concerned without any further act, deed or thing;

   b) Order the advertisements be issued in Business Standard in English in English Edition and Business Standard in Hindi in Hindi Edition;

   c) Issue Notice to the Central Government, ROC, Official Liquidator and Income Tax Department. As there are no other Sectoral Regulator or Authorities of the petitioner Companies, hence notice to any other Regulatory Authority is not required; and

   d) Pass such order/further order (s) as this Hon'ble Tribunal may deem fit and proper in the circumstances of the case.

2. On **23.02.2022**, we directed the applicant to effect publication in the press as well as to issue notice to all the authorities in relation to the date of hearing of the

petition and calling for objections, if any, to the composite scheme of Amalgamation. The date of hearing of the petition was fixed for **24.03.2022.** Order dated **23.02.2022** is extracted below:

"1. This is a Second Motion Petition jointly filed by the Petitioner Companies which has come up before us for admission and for fixing a date of hearing of the Company Petition as well as for a direction in relation to publication in press to be effected and notices to be issued to the authorities concerned in relation to the date of hearing of the and calling for the objections, if any, to the Composite Scheme of Amalgamation (hereinafter for brevity referred to as the "Scheme") Companies. as contemplated between the Petitioner

2. It is seen from the records that the First Motion Application seeking directions for convening / dispensing with the requirement of convening the meetings of Shareholders and Creditors of the Companies was filed before this Tribunal vide Company Application No. CA(CAA)-78(PB)/2021. This Tribunal passed an order dated 18.11.2020 and was pleased to allow the First Motion petition and dispensed with the requirement of convening of the meetings of the secured creditors, unsecured creditors and equity shareholders of both the Applicant companies.

3. The Applicant(s) have filed the present Second Motion Petition, with a delay of seven days. For the condonation of delay an I.A.27/ 2022 has been preferred by the Applicants, which has been allowed vide order dated 10.02.2022.

4. Therefore, in the present Second Motion Petition filed under Sections 230 to 232 of the Act read with Rule 16 of the Rules, the prayer

for fixing a date of hearing as well as for other consequential directions is allowed with the following directions: -

(i) The next date of hearing of the Petition shall be an 24.03.2022 for the consideration of the approval of the Scheme of Amalgamation as contemplated between the Petitioner Companies.

(ii) Notice of the hearing shall be advertised in the newspapers namely, "Business Standard" (English, Delhi edition) and "Business Standard" in Vernacular (Hindi, Delhi edition) not less than 10 days before the next date fixed for hearing.

(iii) In addition to the public notice, each of the Petitioners shall serve the notice of the Petition on the following Authorities namely, (a) Central Government through Regional Director (Northern Region), Ministry of Corporate Affairs; (b) Registrar of Companies, NCT of Delhi & Haryana, Ministry of Corporate Affairs; (c) the Income Tax through the Income Tax Cell at at DCIT (HC Cell), Lawyer's Chamber Block No. 1, Room No. 428 & 429 Delhi High Court, New Delhi and (d) Official Liquidator; and to such other Sectoral Regulatory Authorities, if any applicable, who are likely to be affected by the Scheme, at least 30 days before the date fixed for hearing of the above Petition. The said authorities are directed to send their representations if any, within 30 days from the date of receipt of such notice as per the provisions of sub-section 5 of Section 230 of the Companies Act, 2013.

(iv) Further, notices shall also be served to the Objector(s) or to their representative, if any, as contemplated under Sub-Section (4) of Section 230 of the Companies Act, 2013 who may have

made representation and who have desired to be heard in their representation along with a copy of the Petition and the Annexures filed therewith at least 15 days before the date fixed for hearing.

(v) All the Petitioner companies shall, at least 7 days before the date of hearing of the Petition, file an affidavit of service in relation to paper publication effected as well as service of notices on the Authorities specified above including the Sectoral Regulators, if any applicable, as well as to the Objectors, if any

(vi) Objections, if any, to the Scheme contemplated by the authorities to whom notices have been given, may be filed on or before the date fixed for hearing, failing which it will be considered that there is no objection on the part of the authorities to the approval of the Scheme by this Tribunal and subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder.

(vii) The Petitioner Companies shall individually comply with proviso to sub section (3) of Section 232 or proviso to sub section (7) of Section 230, of the Companies Act, 2013, as may be applicable under the circumstances on or before the date fixed for hearing by filing the required certificate of Company's auditor.

(viii) The petitioner companies shall file their respective up to date audited financial statements before the next date of hearing.

Let a copy of the order be served to the parties.

3. On **24.03.2022,** the following order was passed:

"Heard. Order Reserved."

4. Again on **01.04.2022**, the following order was passed:

> ***"For Clarification:***
> ***The matter is taken up today. Second motion petition has been admitted in the matter of CAA (124)/PB/2021 vide order dated 23.02.2022. It was directed to issue notice to all the authorities regarding the admission of second motion petition. On perusal, it has been found that no document/affidavit of service has been filed. It has been found that neither any RoC and RD report nor any report from IT department has been placed on record. Accordingly, the applicant to submit Proof of service to RD, RoC, IT Department or any other sectoral Regulator (if any) and matter is listed for clarification."***

Vide Order dated **01.04.2022,** it was recorded by this Bench that no affidavit of service was filed. Neither any ROC and RD report nor any report from IT department has been placed on record. Further, it was directed to Applicant to submit proof of service to RD, ROC, IT Department or any other sectoral Regulator (if any).

5. Applicant has filed this present application **IA (Companies Act) /218/2022** under Rule 11 of NCLT Rules for taking on record the Affidavit of Service and prayed that the appropriate orders/directions be issued for issue of notice and directions to the departments to

file their reports and advertisements be directed to be issued in Business Standard or any other orders be passed which this Hon'ble Court deems fit and proper.

6. We have perused the documents filed in **IA 218/2022.** It is found that Applicant has already issued notice to all the statutory authorities but failed to send the Copy of order dated **23.02.2022** to ROC, Official Liquidator, Regional Director and Income Tax authorities. It might be the reason that ROC had refused to forward its report. It is also found that despite the order dated **23.02.2022**, Applicant had not published the notice of the hearing in the newspapers even after being given the opportunities.

7. From the case records, it is seen that the First Motion application seeking direction for dispensing with the meeting of Equity Shareholders, Secured Creditors and Unsecured Creditors had already been admitted vide order dated **18.11.2021.** Also, directions were issued vide order dated **23.02.2022** to the applicant companies to publish notice of hearing. However, applicant companies failed to do so and now they have come before us again seeking to issue directions for notice to the departments and for advertisements. There is not a whisper of why the earlier order has not been complied. We deplore this conduct on the part of the applicant companies/their counsels.

8. In the interest of justice, however, we give the last opportunity to the applicant companies to comply with the order dated **23.02.2022** by fixing a new date of hearing.

9. The prayers in this application (IA 218/2022) are for issuance of notice and directions to departments to file their reports and for issuance of advertisements. It is now hereby ordered as follows:

   i. **The Application stands ALLOWED**

   ii. **The date of hearing of the Petition** led by the Applicant Companies for approval of the Scheme is **fixed for 21.02.2023**

   iii. **Notice of the hearing shall be published in the newspapers** namely, Business Standard" in English and "Business Standard" in Hindi (Delhi edition) in not less than 40 days before aforesaid date fixed for hearing.

10. In addition to the publication of the above Public Notice, the Applicant Companies shall individually serve the notices of this Petition along with copy of this order to the following Authorities, namely:

   (A) Central Government through Regional Director (Northern region), Ministry of Corporate Affairs,

   (B) Ministry of Corporate Affairs, (Official Liquidator, Delhi,

   (C) Registrar of Companies, NCT of Delhi & Haryana,

   (D) The Jurisdictional Income Tax Authorities,

   (E) Such other Sectoral Regulatory Authorities, which govern working of the Companies involved in the Scheme

   at least 40 days before the date fixed for hearing of this Petition.

11. Further, notices shall also be served to the Objector(s) or to their representative, if any, as contemplated under Sub-Section (4) of Section 230 of the Companies Act, 2013 who may have made representation and who have desired to be heard in their representation along with a copy of the Petition and the Annexures filed therewith at least 15 days before the date fixed for hearing.

12. That the Applicant Companies shall, at least 7 days before the date of hearing of the Petition, file an Affidavit of Service in relation to the Newspaper publication effected as well as service of Notices on the Authorities as specified above including the Sectoral Regulators, if any.

13. Objections, if any, by the Authorities to whom Notices are given on or before the date of hearing fixed herein may be filed to the "SCHEME" contemplated by the Applicant Companies, failing which it will be considered by this Tribunal that there is no objection to approval of the "SCHEME" on the part of the Authorities, subject to other conditions as may be applicable under the Companies Act, 2013 and relevant rules framed there under being satisfied.

14. The applicant Companies shall individually comply with proviso to sub section (3) of Section 232 or proviso to sub section (7) of Section 230, of the Companies Act, 2013, as may be applicable under the circumstances on or before the date fixed for hearing by filing the required certificate of Company's auditor.

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15. The applicant companies shall file their respective up to date audited financial statements before the next date of hearing.

List on 21.02.2023

Sd/-

(RAMALINGAM SUDHAKAR)

PRESIDENT

Sd/-

(AVINASH K. SRIVASTAVA)

MEMBER (TECHNICAL)